

New law in effect to protect bicyclists

Drivers must allow 4 feet of buffer space

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By Jon Schmitz, Pittsburgh Post-Gazette

Most bicyclists who ride in traffic have experienced the chilling sensation of a vehicle speeding past them just inches away.

As of today, that is illegal in Pennsylvania.

A state law that took effect at 12:01 a.m. requires motorists who pass bicyclists to give them at least 4 feet of buffer space. If they cannot do so safely, they must wait to pass.

The measure also prohibits what bicyclists call the "right hook" -- a vehicle making a sudden right turn directly in the path of a cyclist.

It was sponsored by state Rep. Ron Miller, R-York, and signed into law two months ago by Gov. Tom Corbett.

"Bicycling is great exercise and an effective, efficient mode of transportation, and Pennsylvania has miles of beautiful countryside that can be enjoyed on two wheels," Mr. Miller said in a statement on his website. "We need to do all that we can to promote the activity and protect bike enthusiasts through legislation that makes it safer for them to enjoy their sport."

Before now, "Pennsylvania lacked any sort of law or tool by which drivers or law enforcement officials could actually figure out how they're supposed to operate," said Scott Bricker, executive director of Bike Pittsburgh, a nonprofit organization that promotes cycling. The law "gives drivers a little bit more literal explanation of what they should be doing. It's codifying what good drivers already do: slow down and wait for a time when you can pass with care."

"I don't think you're going to see people getting pulled over for passing a cyclist within three feet," said Stephen Patchan, Pittsburgh's bicycle/pedestrian coordinator. He said the law will promote awareness of safe practices and, in the worst case, be useful when there are collisions.

The law requires cyclists traveling at below the normal speed of traffic to use the right lane or to stay "as close as practicable to the right-hand curb or edge of the roadway" except when passing another vehicle or preparing for a left turn. It allows them to move away from the curb to avoid hazards like potholes or debris.

The key section for motorists states: "The driver of a motor vehicle overtaking a pedalcycle proceeding in the same direction shall pass to the left of the pedalcycle within not less than four feet at a careful and prudent reduced speed." Violations are summary offenses that carry a \$25 fine.

The law allows drivers on two-lane roads to cross the center line in overtaking a bicycle if there is no oncoming traffic.

Pennsylvania is the 19th state to enact a law requiring a buffer zone when motor vehicles pass bicycles, Mr. Miller said.

Mr. Patchan said the timing may be fortuitous, as cycling is likely to increase this season. "The last time gas prices spiked we just saw an explosion of cyclists," he said.

Mr. Bricker said he's never been struck by a driver in the 15 years he's been on a bicycle, but has had several near-misses.

"What we want to convey to drivers is that the person on the bicycle could be your brother or sister or mom or doctor or teacher. Please, when you see us, take a breath, pass with care and show some patience."

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